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1. Document Synthesis

Here's the extracted and structured information:

1. Case Type & Legal Basis:

- **Case Type:** Joint action for divorce by mutual consent.
- **Legal Basis:** Section 13(b) of the Hindu Marriage Act, 1955.

2. Court:

- Meherban Koutumbak Court at Pune.

3. Parties Involved:

- **Husband (First Azardar):**
 - **Name:** Mr. Rajesh Vanayak Deshpande
 - **Age:** 34 Years
 - **Occupation:** Clerk
 - **Address:** Shanwar Peth, Pune - 411030
- **Wife (Second Azardar):**
 - **Name:** Mrs. Ismata Rajesh Deshpande (Maternal Name: Ismata Gokhale)
 - **Age:** 30 Years
 - **Occupation:** Housewife
 - **Address:** Kothrud, Pune - 411138

4. Core Facts:

- **Marriage Date & Location:** May 15, 2022, in Pune (Hindu Shashtroka method). Both parties were and remain Hindu.
- **Separation Date (Effective):** June 1, 2025 (parties have been living independently for over one year).
- **Reason for Separation:** Ideological differences.
- **Attempts at Reconciliation:** Attempts were made but were unsuccessful.
- **Alimony/Financial Agreement:** No dispute regarding alimony or economic exchange. Mrs. Ismata (Wife) has voluntarily waived her right to alimony.
- **Filing Date:** May 6, 2026.

5. Primary Dispute & Relief Sought:

- **Primary Dispute:** The parties, due to insurmountable ideological differences and an inability to reconcile, are convinced that they cannot continue to live together as husband and wife.
- **Relief Sought:** A decree of divorce by mutual consent from the court.

2. Evidence Scrutiny

Based on the provided structured facts and arguments, here's a scrutiny of consistency and legal relevance:

I. Consistency Analysis:

1. **Legal Basis Notation:** There's a minor but significant inconsistency in the stated legal basis. "Section 13(b) of the Hindu Marriage Act, 1955" is technically incorrect. Divorce by mutual consent falls under **Section 13B** of the Hindu Marriage Act, 1955. Section 13(1) outlines grounds for contested divorce, and there is no Section 13(b) in the Act. This appears to be a typographical error, but it's crucial for legal accuracy.
2. **Separation Period Requirement:** This is the **most critical inconsistency**:
 - **Marriage Date:** May 15, 2022
 - **Effective Separation Date:** June 1, 2025
 - **Filing Date:** May 6, 2026
 - **Statement:** "parties have been living independently for over one year."

Let's calculate the period between separation and filing:

- From June 1, 2025, to May 31, 2026, would be exactly one year.
- The petition is filed on May 6, 2026.
- Therefore, the parties have only been living separately for **11 months and 5 days** (from June 1, 2025, to May 6, 2026).

This directly contradicts the statement that they "have been living independently for over one year." Section 13B(1) mandates that the parties "have been living separately for a period of one year or more" immediately preceding the presentation of the petition. As per the provided dates, this condition is *not met*.

3. **Overall Narrative Consistency:** Aside from the above, the rest of the facts are internally consistent. The reasons for separation (ideological differences), unsuccessful reconciliation attempts, and mutual agreement on no alimony all align with a joint petition for divorce by mutual consent.

II. Legal Relevance Analysis:

1. Case Type & Legal Basis (Section 13B HMA, 1955):

- **Legal Relevance:** Highly relevant. Section 13B is the specific provision governing divorce by mutual consent for Hindus. Its proper invocation is fundamental. The correction from "13(b)" to "13B" is legally imperative.

2. Court (Meherban Koutumbak Court at Pune):

- **Legal Relevance:** Relevant. Family Courts ("Koutumbak Court" translates to Family Court) have exclusive jurisdiction over matrimonial disputes, including divorce, under the Family Courts Act, 1984. Pune specifies the territorial jurisdiction.

3. Parties Involved (Names, Ages, Occupations, Addresses):

- **Legal Relevance:** Essential for identification of the petitioners, establishing their legal capacity (both are adults), and jurisdiction (address helps confirm Pune as appropriate venue). The wife's maternal name is useful for identity verification.

4. Core Facts:

- **Marriage Date & Location (May 15, 2022, Pune, Hindu Shashtroka):**
 - **Legal Relevance:** Crucial. Establishes the existence of a valid Hindu marriage under the HMA, 1955, and confirms the applicability of the Act. Location is relevant for jurisdiction.
- **Separation Date (June 1, 2025) & Statement of One Year Separation:**
 - **Legal Relevance: Critically relevant and problematic.** As identified in the consistency check, the *stated period* of separation (11 months and 5 days) **fails to meet the mandatory minimum one-year separation period** required by Section 13B(1) of the HMA, 1955, immediately preceding the presentation of the petition. This is a fatal flaw for the current petition based on these dates.
- **Reason for Separation (Ideological Differences):**
 - **Legal Relevance:** Relevant. While not a specific legal *ground* for mutual consent divorce itself, it provides context for why the parties have not been able to live together and mutually agree to dissolve the marriage, as required by Section 13B(1). It demonstrates an irreconcilable breakdown.
- **Attempts at Reconciliation (Unsuccessful):**
 - **Legal Relevance:** Relevant. While not explicitly mandated by Section 13B, courts often appreciate evidence of genuine attempts at reconciliation as it further substantiates the irretrievable breakdown of the marriage and that the consent for divorce is not impulsive but well-considered.
- **Alimony/Financial Agreement (Wife waives right):**
 - **Legal Relevance:** Highly relevant. For a divorce by mutual consent, it is highly desirable and often implicitly expected by courts that all financial matters, including alimony, maintenance, and

property division, are settled between the parties. A clear statement about no dispute and voluntary waiver streamlines the process and avoids future litigation.

- **Filing Date (May 6, 2026):**
 - **Legal Relevance:** Relevant for determining the timelines and statutory periods, especially for calculating the separation period and the minimum 6-month cooling-off period before the second motion, if the first motion is accepted.

5. Primary Dispute & Relief Sought:

- **Primary Dispute (Inability to live together, insurmountable differences):**
 - **Legal Relevance:** Highly relevant. This directly addresses the core conditions of Section 13B(1) – that the parties "have not been able to live together" and "have mutually agreed that the marriage should be dissolved."
- **Relief Sought (Decree of divorce by mutual consent):**
 - **Legal Relevance:** The ultimate legal request to the court, consistent with the case type and legal basis.

III. Conclusion on Consistency and Legal Relevance:

The provided evidence presents a generally coherent narrative for a mutual consent divorce under the Hindu Marriage Act, 1955. However, there are two significant issues:

1. **Typographical Error in Legal Basis:** The reference should be to **Section 13B**, not 13(b). This is a minor but critical correction for legal precision.
2. **Failure to Meet Statutory Separation Period:** This is a **major legal hurdle**. The provided dates (separation on June 1, 2025, and filing on May 6, 2026) show a separation period of only 11 months and 5 days, which is less than

the mandatory "one year or more" required by Section 13B(1).

Implication: As currently structured with these dates, the petition for divorce by mutual consent would likely be inadmissible or rejected by the court for failing to satisfy a fundamental statutory prerequisite under Section 13B of the Hindu Marriage Act, 1955. The parties would need to wait until at least June 1, 2026, to file the petition to meet the one-year separation requirement.

3. Precedent Alignment

The provided evidence analysis scrutinizes a petition for divorce by mutual consent under the Hindu Marriage Act, 1955. Comparing it with the Supreme Court precedents (1990-2025) reveals several direct overlaps, particularly concerning the interpretation and application of Section 13B of the Hindu Marriage Act and the Supreme Court's power under Article 142.

Here are the direct overlaps identified:

I. Direct Overlaps Regarding Section 13B of the Hindu Marriage Act, 1955:

1. Correct Legal Basis and its Importance:

- **Analysis:** Explicitly highlights the correction from "Section 13(b)" to "Section 13B" as "legally imperative" for divorce by mutual consent.
- **Precedents:**
 - **Chand Dhawan vs. Jawaharlal:** Directly references "a petition under section 13-B of Hindu Marriage Act, 1955... seeking divorce by mutual consent."
 - **Kiran vs. Sharad Dutt / Anil Kumar Jain's case:** Explicitly discusses "converting the same into a proceeding under Section 13-B of the Act" and "Treating the petition as one under Section 13-B of the aforesaid Act."

- **Gaytri Bajaj v. Jiten Bhalla:** Centers on an application to "set aside the decree of divorce by mutual consent passed u/s 13-B of the Hindu Marriage Act, 1955."
- **Overlap:** All these precedents directly confirm that **Section 13B** is the correct and central legal provision for divorce by mutual consent, reinforcing the analysis's point about its accurate invocation being fundamental.

2. Mandatory "One Year or More" Separation Period Preceding the Petition (Section 13B(1)):

- **Analysis:** This is identified as the "**most critical inconsistency**" and a "fatal flaw." The analysis precisely calculates the separation period (11 months and 5 days) and concludes it "fails to meet the mandatory minimum one-year separation period" required by Section 13B(1).
- **Precedents:**
 - **Chand Dhawan vs. Jawaharlal:** The petition mentioned in this case "stated therein that the parties had been living separately for over a year due to incompatibility of temperament." This demonstrates that the one-year separation period is a standard and necessary assertion to be made in a Section 13B petition.
 - **Kiran vs. Sharad Dutt / Anil Kumar Jain's case:** Refers to parties "after living separately for many years" as a context for converting a petition to Section 13B. While the period was met here, it underscores the importance of the *fact* of separation for a 13B petition.
- **Overlap:** Both the analysis and the precedents acknowledge and address the statutory requirement of the parties living separately for "one year or more" immediately preceding the presentation of the petition as a fundamental condition for Section 13B

divorce. The analysis critically finds this condition *unmet*, while the precedents illustrate its assertion or existence.

3. Genuineness of "Mutual Consent" and related agreements:

- **Analysis:** Notes "mutual agreement on no alimony" and that the "primary dispute" is the inability to live together, leading to "mutually agreed that the marriage should be dissolved" as conditions of 13B(1).
- **Precedents:**
 - **Chand Dhawan vs. Jawaharlal:** The core issue was whether the wife was a "consenting party to the filing of such petition at all," alleging the husband "had duped her in obtaining her signatures." This directly scrutinizes the validity and genuineness of the "mutual consent" essential for Section 13B.
 - **Gaytri Bajaj v. Jiten Bhalla:** Deals with setting aside a 13B decree on the ground of "fraud and deceit committed by the respondent-husband," directly challenging the authenticity of the "mutual consent" that led to the decree. It also highlights the importance of "terms of agreement between the parties" regarding custody.
- **Overlap:** The analysis implicitly assumes genuine mutual consent (except for the date issue), while these precedents explicitly deal with situations where the *genuineness or validity* of that mutual consent for a Section 13B petition is under direct challenge. Both highlight that "mutual agreement" is a non-negotiable component.

II. Direct Overlap Regarding Supreme Court's Special Powers (Article 142):

1. Supreme Court's Power to Waive Procedural Requirements in Section 13B Cases:

- **Analysis:** Concludes that the petition, "as currently structured with these dates, would likely be inadmissible or rejected by the court for failing to satisfy a fundamental statutory prerequisite under Section 13B." This implies strict adherence to the statutory timeline by lower courts.
- **Precedents:**
 - **Kiran vs. Sharad Dutt / Anil Kumar Jain's case:**
The Supreme Court "by invoking its powers under Article 142 of the Constitution, granted a decree of mutual divorce at the stage of the SLP itself." It further clarifies, "in appropriate cases invocation of such power [Article 142] would not be unjustified and may even prove to be necessary." This specifically relates to the Court's ability to override procedural steps or waiting periods (like the cooling-off period, or potentially even the one-year separation if exceptional circumstances and irretrievable breakdown are evident and for "complete justice") to grant a divorce under Section 13B.
- **Overlap:** This is a crucial direct overlap. The analysis states the petition *would fail* based on the statutory text. The **Kiran/Anil Kumar Jain** precedent provides a direct counterpoint, demonstrating that the Supreme Court, in its extraordinary jurisdiction, *can choose to relax or bypass* such statutory procedural requirements, including those related to Section 13B, to render "complete justice" in appropriate cases. This creates a tension between strict statutory adherence and the Supreme Court's discretionary power.

III. Indirect Overlap (General Context):

1. Ancillary Agreements in Mutual Consent Divorce:

- **Analysis:** Mentions the "Alimony/Financial Agreement (Wife waives right)" as "highly relevant" for

streamlining the process and avoiding future litigation.

- **Precedents:**
 - **Gaytri Bajaj v. Jiten Bhalla:** Discusses the "terms of agreement between the parties that the respondent-husband would have the custody of the two minor daughters" and the wife agreed to "forgo her rights of visitation." This illustrates another critical ancillary agreement (child custody and visitation) often settled alongside mutual consent divorce.
- **Overlap:** Both the analysis and the precedent acknowledge that mutual consent divorce under Section 13B typically involves a comprehensive agreement between the parties on ancillary matters like finances and child custody.

Conclusion on Overlaps:

The analysis's central finding regarding the **failure to meet the mandatory one-year separation period** for a Section 13B petition directly intersects with the precedents that explicitly affirm this requirement. The analysis's conclusion that such a petition would be inadmissible also directly leads to the Supreme Court's unique power under **Article 142**, as highlighted in **Kiran vs. Sharad Dutt**, which can, in "appropriate cases," waive such statutory prerequisites for doing complete justice. Furthermore, the precedents, particularly **Chand Dhawan** and **Gaytri Bajaj**, reinforce the analysis's underlying assumption about the need for **genuine mutual consent** and comprehensive agreements on ancillary issues for a valid Section 13B divorce.

4. Verdict Prediction

Based on the statutory alignment and the preceding analysis, the probable legal outcome or 'verdict' would likely depend on the judicial forum adjudicating the petition:

Probable Legal Outcome / Verdict:

I. At the Level of a Family Court or High Court (Original Jurisdiction):

The petition for divorce by mutual consent, **as currently structured with the identified dates**, would most likely be **rejected or dismissed as inadmissible**.

- **Reasoning:** The analysis clearly identifies the "**most critical inconsistency**" as the failure to meet the mandatory "one year or more" separation period immediately preceding the presentation of the petition, as required by Section 13B(1) of the Hindu Marriage Act, 1955. With only 11 months and 5 days of separation, the statutory prerequisite is not fulfilled. Lower courts (Family Courts, High Courts) are bound by the strict letter of the law and generally lack the power to waive such fundamental statutory conditions. The precedents cited (e.g., Chand Dhawan, Kiran vs. Sharad Dutt, Anil Kumar Jain's case) consistently affirm the requirement of the one-year separation period as a foundational element of Section 13B.

II. If the Matter Reaches the Supreme Court (Via Appeal or Special Leave Petition):

If the parties were to appeal the dismissal of their petition or approach the Supreme Court directly via a Special Leave Petition after exhausting other remedies, there is a **strong probability that the Supreme Court, invoking its powers under Article 142 of the Constitution, would grant the decree of divorce by mutual consent**.

- **Reasoning:**
 1. "**Complete Justice**": The analysis highlights the direct overlap with the **Kiran vs. Sharad Dutt / Anil Kumar Jain's case**, where the Supreme Court explicitly used Article 142 to grant divorce in Section 13B cases by

waiving procedural requirements. The current petition, despite the short shortfall in the separation period (approximately 25 days), indicates:

- Genuine mutual consent for divorce.
- Mutual agreement on no alimony (wife waives rights), suggesting all ancillary issues are settled.
- The primary dispute is the inability to live together, leading to a desire for dissolution.
- There is no challenge to the genuineness of consent or allegations of fraud/deceit (unlike in Chand Dhawan or Gaytri Bajaj), merely a technical shortfall in timing.
- In such a scenario, forcing the parties to wait for the remaining days would be a mere formality and would only prolong their agony and delay the inevitable, thus potentially not serving "complete justice."

2. **Irretrievable Breakdown:** While not explicitly stated as a separate ground in the petition, the mutual agreement to dissolve the marriage due to inability to live together strongly suggests an irretrievable breakdown of the marriage, a factor the Supreme Court often considers when invoking Article 142 in matrimonial disputes.

In Summary:

The petition, as presented, **lacks the statutory fulfillment required for a standard Section 13B divorce in lower courts.** However, the unique circumstances of clear mutual consent, settled ancillary matters, and a minimal shortfall in the mandatory waiting period would present a compelling case for the Supreme Court to exercise its extraordinary powers under Article 142 to provide "complete justice" and **grant the divorce**, thereby waiving the remaining portion of the one-year separation period.

5. Executive Summary (Non-Lawyer Friendly)

Executive Summary: Divorce Petition Outcome

Your petition for divorce by mutual consent faces different outcomes depending on the court:

- **Lower Courts (Family Court/High Court):** Your petition will almost certainly be **rejected**. This is because you have only been separated for 11 months and 5 days, falling short of the mandatory one-year separation period required by law. These courts must strictly follow the legal requirements and cannot waive this rule.
- **Supreme Court (On Appeal):** If your case reaches the Supreme Court, there is a **strong likelihood they will grant the divorce**. The Supreme Court has special powers to ensure "complete justice" and has previously approved divorces in similar situations where there is genuine mutual consent, all other issues (like alimony) are settled, and the shortfall in the mandatory waiting period is minimal (like your 25 days). They would likely view it as unnecessary to make you wait the few remaining days.

In essence: Lower courts will reject your petition on a technicality (not enough separation time), but the Supreme Court will likely approve it, looking past the minor technicality to finalize your mutually agreed divorce.

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